



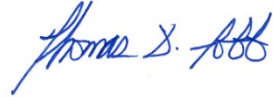
CITY
ENGINEER

2101 O'Neil Avenue
Cheyenne, WY 82001
(307) 637-6268
cheyennecity.org

MEMORANDUM

DATE: January 27, 2026

TO: Honorable Mayor Patrick J. Collins
City Council Members

FROM: Thomas D. Cobb, PE, City Engineer 

SUBJECT: **Amendment One to City Contract #7777, Cooperative Agreement No. 70439 between the Wyoming Department of Transportation WYDOT and the City of Cheyenne for Federal Project B231031 (US 30 / Dell Range Blvd. / Whitney Road)**

PURPOSE AND BACKGROUND

The purpose of this agenda item is to request City Council approval of Amendment One to the Cooperative Agreement between the City of Cheyenne and the Wyoming Department of Transportation (WYDOT) for federally funded roadway improvements associated with the South Frontage Road and areas within the Whitney Ranch and Meadowlark Estates.

SUMMARY OF AMENDMENT

Amendment One updates the original agreement to reflect revised project costs, increased federal funding, updated federal award documentation, and clarified City responsibilities. The amendment replaces several exhibits in the original agreement, including the Summary of Project Costs and Federal Award Information, and formally incorporates updated federal requirements.

Key changes include an increase in the total federal participation from \$3.16 million to \$6.61 million, reflecting updated cost estimates and additional federal STPU funding. The City's participation remains proportional to construction costs and includes reimbursement to WYDOT for eligible project expenses, including construction engineering and indirect costs assessed through WYDOT's approved Indirect Cost Allocation Plan (ICAP).

COST

Based on the revised cost estimates, the City's total project obligation was increased from \$3,986,396 to \$7,335,032, which includes construction, engineering, and applicable indirect costs. However, due to the increase in available federal funding, the City's share of the federal match and overmatch was reduced from \$824,464 to \$721,867, subject to final bid prices and federal participation rates. Actual costs may vary, and any increase exceeding 20 percent of estimated costs would require further



amendment and approval by both parties. Therefore, the total request is for 1.2 x \$721,867 or **\$866,240**.

RECOMMENDED ACTION

I respectfully request approval of Amendment One to City Contract #7777, Cooperative Agreement No. 70439 between the City of Cheyenne and the Wyoming Department of Transportation in the amount of \$866,240.

Approval of this amendment allows the City to remain eligible for federal transportation funding administered by WYDOT and ensures compliance with federal requirements under 2 CFR Part 200. The amendment does not change WYDOT's responsibilities but clarifies the City's obligation to reimburse costs not covered by federal funds and to comply with federal grant administration, audit, and reporting requirements

Failure to approve the amendment would delay project delivery and could jeopardize the availability of federal funds for this corridor improvement.



Date: 1/9/2026

**AMENDMENT ONE
TO COOPERATIVE AGREEMENT BETWEEN THE
WYOMING DEPARTMENT OF TRANSPORTATION
AND THE
CITY OF CHEYENNE**

1. **Parties.** This Amendment is made and entered into by and between the Wyoming Department of Transportation (WYDOT), whose address is: 5300 Bishop Blvd., Cheyenne, Wyoming 82009, and the City of Cheyenne (City), whose address is: 2101 O'Neil Avenue, Cheyenne, Wyoming 82001.
2. **Purpose of Amendment.** This Amendment shall constitute the first amendment to the Cooperative Agreement (Agreement) between WYDOT and the City. The purpose of this Amendment is to: a) replace Exhibit B with Exhibit B-1, increasing the total Agreement federal dollar amount by three million, four hundred fifty-one thousand, two hundred thirty-three dollars (\$3,451,233.00) to six million, six hundred thirteen thousand, one hundred sixty-five dollars (\$6,613,165.00); b) replace Exhibit D with Exhibit D-1; c) update the Special Provisions; and d) amend the responsibilities of the City.

The original Agreement, dated June 30, 2023, required the City to reimburse WYDOT for its expenditures related to the federally funded, WYDOT administered, construction improvements on the south frontage road and areas located within the boundary of Whitney Ranch and Meadowlark Estates proposed annexation areas for a total Agreement federal dollar amount of three million, one hundred sixty-one thousand, nine hundred thirty-two dollars (\$3,161,932.00).

3. **Term of the Amendment.** This Amendment shall commence on the date the last required signature is affixed hereto (Effective Date) and shall remain in full force and effect through the term of the Agreement, as amended, unless terminated at an earlier date pursuant to the provisions of the Agreement, or pursuant to federal or state statute, rule, or regulation.

4. **Amendments.**

- A. Section 4 of the original Agreement is hereby amended in its entirety to read as follows:

- "4. Participation of Project Costs.**

- A. The City agrees to reimburse WYDOT for the project costs at the rate of nine and fifty-one hundredths percent (9.51%) of the costs of construction and construction engineering as shown on Exhibit B-1, Revised Summary of Project Costs, which is attached to and incorporated into this Agreement by this reference. The City agrees to reimburse to WYDOT any funds above those authorized by WYDOT and matched by the City necessary to build this project.

Any costs exceeding the maximum federal funds authorized by WYDOT, six million, six hundred thirteen thousand, one hundred sixty-five dollars (\$6,613,165.00) as shown on Exhibit D-1, Modified Federal Award Information, which is attached to and incorporated into this Agreement by this reference, for this Project will be borne by the City.

- B.** It is understood by the parties that the above-mentioned percentages may vary slightly during the life of this Agreement, as dictated by the *Federal Notices on Sliding Scale Rates of Federal Aid Participation in Public Lands States*. It is further understood by the City that the estimated costs may vary as the project plans are developed and let to contract and that the City shall reimburse WYDOT for the total amount not paid with federal funds.
- C.** The costs shown on Exhibit B-1 are estimates only and the City understands that the final costs may be higher or lower. Rates may vary for the life of this project based on federal reviews and approval. If the actual costs go over by twenty percent (20%) of the total estimated costs, both parties must agree upon and sign an amendment for the additional costs.
- D.** The City agrees to pay its portion of the actual cost of this project, including all indirect costs through the current Indirect Cost Allocation Plan (ICAP) rate as approved by the Federal Highway Administration (FHWA). ICAP is a rate built into WYDOT's accounting system for overhead expenditures for administering a project. The ICAP rate is developed by WYDOT and approved by the FHWA, with the new rate taking effect immediately. The current rate of eleven percent (11%) is effective until September 30, 2027, at which time the rate is subject to change based on FHWA approval. The ICAP rate will be charged on total direct costs on this Project. WYDOT will bill the City on a monthly basis unless otherwise agreed upon between the parties."
- B.** As of the Effective Date of this Amendment, Exhibit B, Summary of Project Costs, which was attached to the original Agreement, is superseded and replaced by Exhibit B-1, Revised Summary of Project Costs, which is attached to this Amendment and incorporated into the original Agreement by this reference. All references to "Exhibit B" in the original Agreement, and in any amendments thereto, are amended to read: "Exhibit B-1."
- C.** As of the Effective Date of this Amendment, Exhibit D, Federal Award Information, which was attached to the original Agreement, is superseded and replaced by Exhibit D-1, Modified Federal Award Information, which is attached

to this Amendment and incorporated into the original Agreement by this reference. All references to "Exhibit D" in the original Agreement, and in any amendments thereto, are amended to read: "Exhibit D-1."

- D. Section 8 of the original Agreement is hereby amended in its entirety to read as follows:

"8. Federal Special Provisions.

- A. **Administration of Federal Funds.** The City agrees its use of the funds awarded herein is subject to the Uniform Administrative Requirements of 2 CFR Part 200, *et seq.*; any additional requirements set forth by the federal funding agency; all applicable regulations published in the Code of Federal Regulations; and other program guidance as provided to it by WYDOT.
- B. **Applicability of Appendix II to 2 CFR Part 200.** This Agreement has been funded, in whole or in part, with an Award of Federal funds and is bound by the federal contract provisions required by the Uniform Guidance Appendix II of 2 CFR Part 200 (the Federal Contract Provisions), incorporated herein by this reference. In the event of a conflict between the Special Provisions section of this Agreement, or any attachments or exhibits incorporated herein, and the Federal Contract Provisions, the Federal Contract Provisions shall control. Failure to comply with the Federal Contract Provisions shall constitute an event of default under this Agreement. If such a default remains uncured five (5) calendar days following the termination of a thirty (30) day prior written notice period, WYDOT may terminate this Agreement. This remedy will be in addition to any other remedy available to the State of Wyoming and WYDOT under this Agreement, at law, or in equity.
- C. **Assumption of Risk.** The City shall assume the risk of any loss of state or federal funding, either administrative or program dollars, due to the City's failure to comply with state or federal requirements. WYDOT shall notify the City of any state or federal determination of noncompliance.
- D. **Conflict of Interest.** Per 2 CFR 200.112, the City must disclose in writing any potential conflict of interest to WYDOT including financial or other personal interests.
- E. **Copyright License and Patent Rights.** The City acknowledges that federal grantor, the State of Wyoming, and WYDOT reserve a royalty-free, nonexclusive, unlimited, and irrevocable license to reproduce, publish, or otherwise use, and to authorize others to use,

for federal and state government purposes: (1) the copyright in any work developed under this Agreement; and (2) any rights of copyright to which the City purchases ownership using funds awarded under this Agreement. The City must consult with WYDOT regarding any patent rights that arise from, or are purchased with, funds awarded under this Agreement.

- F. Environmental Policy Acts.** The City agrees all activities under this Agreement will comply with the Clean Air Act, the Clean Water Act, the National Environmental Policy Act, and other related provisions of federal environmental protection laws, rules or regulations.
- G. Federal Audit Requirements.** The City agrees that if it expends an aggregate amount in excess of the amount set forth in 2 CFR Part 200, Subpart F in federal awards during its fiscal year, it must undergo an organization-wide financial and compliance single audit. The City agrees to comply with the audit requirements of the U.S. General Accounting Office Government Auditing Standards and Audit Requirements of 2 CFR Part 200, Subpart F. If findings are made which cover any part of this Agreement, the City shall provide one (1) copy of the audit report to WYDOT and require the release of the audit report by its auditor be held until adjusting entries are disclosed and made to WYDOT's records.
- H. Human Trafficking.** As required by 22 U.S.C. § 7104(g) and 2 CFR Part 175, this Agreement may be terminated without penalty if a private entity that receives funds under this Agreement:

 - (i) Engages in severe forms of trafficking in persons during the period of time that the award is in effect;
 - (ii) Procures a commercial sex act during the period of time that the award is in effect; or
 - (iii) Uses forced labor in the performance of the award or subawards under the award.
- I. Kickbacks.** The City certifies and warrants that no gratuities, kickbacks, or contingency fees were paid in connection with this Agreement, nor were any fees, commissions, gifts, or other considerations made contingent upon the award of this Agreement. If the City breaches or violates this warranty, WYDOT may, at its discretion, terminate this Agreement without liability to WYDOT, or deduct from the agreed upon price or consideration, or otherwise recover, the full amount of any commission, percentage, brokerage, or contingency fee.

The City shall comply with the Copeland Anti-Kickback Act (18 U.S.C. § 874) as supplemented in the Department of Labor Regulations (29 CFR, Part 3). This Act provides that the City is prohibited from inducing, by any means, any person employed in the construction, completion, or repair of public works to give up any part of the compensation to which he or she is otherwise entitled.

- J. Limitations on Lobbying Activities.** By signing this Agreement, the City certifies and agrees that, in accordance with P.L. 101-121, payments made from a federal grant shall not be utilized by the City or its subcontractors in connection with lobbying member(s) of Congress, or any federal agency in connection with the award of a federal grant, contract, cooperative agreement, or loan.

The City and subcontractors may also be required to submit an additional certification statement and disclosure form acceptable to WYDOT before commencement of the work.

- K. Mandatory Disclosures.** Per 2 CFR 200.113, the City must disclose, in a timely manner, in writing to WYDOT all violations of federal criminal law involving fraud, bribery, or gratuity violations potentially affecting this award. Failure to make required disclosures can result in remedies for noncompliance including suspension or debarment.

- L. Monitoring Activities.** WYDOT shall have the right to monitor all activities related to this Agreement that are performed by City or its subcontractors. This shall include, but not be limited to, the right to make site inspections at any time and with reasonable notice; to bring experts and consultants on site to examine or evaluate completed work or work in progress; to examine the books, ledgers, documents, papers, and records pertinent to this Agreement; and to observe personnel in every phase of performance of the related work.

- M. Nondiscrimination.** The City shall comply with the Civil Rights Act of 1964, the Wyoming Fair Employment Practices Act (Wyo. Stat. § 27-9-105, *et seq.*), the Americans with Disabilities Act (ADA), 42 U.S.C. § 12101, *et seq.*, and the Age Discrimination Act of 1975 and any properly promulgated rules and regulations thereto and shall not discriminate against any individual on the grounds of age, sex, color, race, religion, national origin, or disability in connection with the performance under this Agreement.

Federal law requires the City to include all relevant special provisions of this Agreement in every subcontract awarded over ten thousand dollars (\$10,000.00) so that such provisions are binding on each subcontractor.

- N. No Finder's Fees.** No finder's fee, employment agency fee, or other such fee related to the procurement of this Agreement, shall be paid by either party.
- O. Non-Supplanting Certification.** The City hereby affirms that federal grant funds shall be used to supplement existing funds, and shall not replace (supplant) funds that have been appropriated for the same purpose. The City should be able to document that any reduction in non-federal resources occurred for reasons other than the receipt or expected receipt of federal funds under this Agreement.
- P. Program Income.** The City shall not deposit grant funds in an interest bearing account without prior approval of WYDOT. Any income attributable to the grant funds distributed under this Agreement must be used to increase the scope of the program or returned to WYDOT.
- Q. Publicity.** Any publicity given to the projects, programs, or services provided herein, including, but not limited to, notices, information, pamphlets, press releases, research, reports, signs, and similar public notices in whatever form, prepared by or for the City and related to the services and work to be performed under this Agreement, shall identify WYDOT as the sponsoring agency and shall not be released without prior written approval of WYDOT.
- R. Suspension and Debarment.** By signing this Agreement, the City certifies that neither it nor its principals/agents are presently debarred suspended, proposed for debarment, declared ineligible, or voluntarily excluded from participation in this transaction or from receiving federal financial or nonfinancial assistance, nor are any of the participants involved in the execution of this Agreement suspended, debarred, or voluntarily excluded by any federal department or agency in accordance with Executive Order 12549 (Debarment and Suspension), or 2 CFR Part 180, or are on the debarred, or otherwise ineligible, vendors lists maintained by the federal government. Further, the City agrees to notify WYDOT by certified mail should it or any of its principals/agents become ineligible for payment, debarred, suspended, or voluntarily excluded from receiving federal funds during the term of this Agreement."

5. **Amended Responsibilities of the City.**

A. Section 6(D) of the original Agreement is hereby amended in its entirety to read as follows:

“D. Should the City abandon or indefinitely postpone the Project at any time, or if the Project is not let to construction within four (4) years of the completion of the design, due to the delay or actions by the City, the City shall reimburse WYDOT for the entire cost, including any federal aid portion of the work completed at the time of abandonment.”

6. **Amended Responsibilities of WYDOT.** Responsibilities of WYDOT have not changed.

7. **Special Provisions.**

A. **Same Terms and Conditions.** With the exception of items explicitly delineated in this Amendment, all terms and conditions of the original Agreement between WYDOT and the City, including but not limited to sovereign immunity, shall remain unchanged and in full force and effect.

B. **Counterparts.** This Amendment may be executed in counterparts. Each counterpart, when executed and delivered, shall be deemed an original and all counterparts together shall constitute one and the same Amendment. Delivery by the City of an originally signed counterpart of this Amendment by facsimile or PDF shall be followed up immediately by delivery of the originally signed counterpart to WYDOT.

8. **General Provisions.**

A. **Entirety of Agreement.** The original Agreement, consisting of thirteen (13) pages; Exhibit A, Location Map, consisting of two (2) pages; Exhibit B, Summary of Project Costs, consisting of one (1) page; Exhibit C, Final Reconnaissance Report, consisting of fifteen (15) pages; Exhibit D, Federal Award Information, consisting of one (1) page; this Amendment One, consisting of eight (8) pages; Exhibit B-1, Revised Summary of Project Costs, consisting of two (2) pages; Exhibit D-1, Modified Federal Award Information, consisting of one (1) page; and the Federal Contract Provisions, represent the entire and integrated Agreement between the parties and supersede all prior negotiations, representations, and agreements, whether written or oral.

THE REMAINDER OF THIS PAGE WAS INTENTIONALLY LEFT BLANK.

9. **Signatures.** The parties to this Amendment, through their duly authorized representatives, have executed this Amendment on the dates set out below, and certify that they have read, understood, and agreed to the terms and conditions of this Amendment.

The Effective Date of this Amendment is the date of the signature last affixed to this page.

WYOMING DEPARTMENT OF TRANSPORTATION

Keith R. Fulton, P.E., Chief Engineer

Date

ATTEST:

Caitlin Casner, Secretary
Transportation Commission of Wyoming

CITY OF CHEYENNE

Patrick Collins, Mayor

Date

ATTEST:

Kylie Soden, Cheyenne City Clerk

Date

ATTORNEY GENERAL'S OFFICE: APPROVAL AS TO FORM

 #252884

Nicholas T. Garcia, Assistant Attorney General

12/15/25

Date

EXHIBIT B-1
Revised Summary of Project Costs

Federal Project STPU-CH B231031
Cheyenne Streets
US 30 and Dell Range Blvd. and Whitney Road
Laramie County

11/19/25

Costs were prepared by WYDOT using 2026 costs. Costs include all work on the project **within** the Whitney Ranch and Meadowlark Estates proposed annexation map, along with the South Frontage Road.

Item	Laramie County ³	City of Cheyenne	Line
Cost Breakdown			
Estimated Total Project <u>Construction Costs</u> (2026 costs)		\$11,983,180.00	[1]
Estimated Share of Project <u>Construction Costs</u> (2026 costs)	\$5,975,782.00	\$6,007,398.00	[2]
20% Preliminary Engineering = [1] * 0.20	\$2,396,636.00	\$0.00	[3] ⁴
10% Construction Engineering (2026 costs) = [2] * 0.10	<u>\$ 597,578.00</u>	\$ 600,740.00	[4] ^{4,5}
Right-of-Way Acquisition	\$ 1,093,878.00	\$0.00	[5] ^{4,6}
Utility Relocation	<u>\$ 300,000.00</u>	\$0.00	[6] ^{4,7}
Total Direct Costs [2] + [3] + [4] + [5] + [6]	\$10,363,875.00	\$6,608,137.00	[7]
Indirect Cost Allocation Plan (ICAP) = [7] * 0.11	\$ 1,140,026.00	\$ 726,895.00	[8]
Total Project Costs = [7] + [8]	\$11,503,901.00	\$7,335,032.00	[9]
Funding Breakdown			
Maximum Available Federal STPU Funds through 2026:		\$13,199,931.00	[10]
Percent Share of STPU Funds [2] ÷ [1]	49.9%	50.1%	[11] ⁸
Share of Federal STPU Funds: [10] * [11]	\$6,586,766.00	\$6,613,165.00	[12]
Federal Funds Local Match: ([12] ÷ 0.9049)*(0.0951)	\$ 692,233.00	\$695,007.00	[13]
Overmatch [9] - [12] - [13]	\$4,224,903.00	\$ 26,860.00	[14]
Total Cost Share [13] + [14]	\$ 4,917,135.00	\$721,867.00	[15]

- NOTE:
- 1) All costs shown are rounded to the nearest dollar.
 - 2) The above figures are for estimating purposes only and are subject to revision throughout the life of this Project.
 - 3) Costs for the Laramie County portion shown for informational purposes only.
 - 4) All preliminary engineering costs (PE, ROW, & Utility) for the Project will be billed to the County and a portion reimbursed by the City of Cheyenne pursuant to their own independent agreement.
 - 5) Construction Engineering includes Project close out costs.
 - 6) Right-of-Way acquisition costs are estimated based on appraised land values.
 - 7) Utility relocation costs are based on a preliminary estimate from the service provider.
 - 8) The share of Federal STPU funds is split between City and County based on the estimated ratio of construction costs at the time of bid letting.

Exhibit D-1
Modified Federal Award Information - Required by 2 CFR § 200.331

Subrecipient Name: City of Cheyenne

Subrecipient UEI: KURKMKZUFMY2

Assistance Listing No.: 20.287

Assistance Listing Title: Highway Planning and Construction

Federal Award Identification Number (FAIN):
TBD

Federal Award Date: TBD

Subaward Period of Performance (Start and End date) estimate: March 1, 2022, through December 1, 2027

Federal Award Project Description:
Construction of intersections

Federal Award original Agreement:
\$3,161,932.00

Total amount of Federal Funds Obligated to Subrecipient by WYDOT: \$6,613,165.00

Federal Award Amendment One: \$3,451,233.00

Total Amount of the Federal Award Committed to Subrecipient: \$6,613,165.00

Awarding Federal Agency:
Federal Highway Administration

Pass-through Agency:
Wyoming Department of Transportation (WYDOT)

Federal Highway Administration:
Wyoming Division Office
Telephone: 307-772-2101
Email: HDAWY@dot.gov

WYDOT Program Mgr.: Julianne Monahan
Telephone: 307-777-4178
Email: julianne.monahan@wyo.gov

WYDOT Contact for Confirmation of Funds:
Financial Services
Telephone: 307-777-4469
Email: dotrevenue@wyo.gov

Indirect Cost Rate (ICAP): 11%

Research and Development: No

Project Name: Cheyenne Streets, US 30 & Dell Range Boulevard, and Whitney Road

Recipient County: Laramie

Agreement No.: 70439

Project No.: B231031

Total Project Budget: \$7,335,032.00

Budget Period: March 1, 2022, through December 1, 2027